Supriyo and Abhay got married in 2021 in Hyderabad, the city where they first met. The decision to tie the knot and seek legal recognition for their marriage was triggered by a series of incidents that made them feel discriminated against.

The duo had first started living together in 2013, and a year later, Abhay bought a house. Problems started when they wanted to update Supriyo's residential address, which proved to be difficult as he didn't have documents to prove his relationship with Abhay. The Covid-19 pandemic came as a bigger jolt. During the second wave in 2021, when both Supriyo and Abhay got Covid, they realised that they "could not just continue living together in the same way". The simplest of documents, say, a health insurance policy, became difficult to obtain.

Making financial investments was also difficult. They can't inherit each other's assets. "We may be the most important to each other, but in the eyes of law, we are strangers," says Abhay. Though their parents supported the marriage, not having legal sanction denies the couple their basic rights.

The two thus moved the Supreme Court in November 2022, seeking legal sanction for their marriage. Their argument is that same-sex couples have been discriminated against by not being allowed to exercise their right to marry the person of their choice. The couple also doesn't agree with the government's argument that same-sex relationships are an elitist concept, pointing out how nearly 300 guests turned up to celebrate their relationship at their wedding reception in small-town Ashok Nagar.

"There is an indignity attached to the non-recognition of our relationship. We are treated as second-class citizens"

– ABHAY DANG

is akin to endangering the children". Same-sex parents, they argued, may have limited exposure to traditional gender role models, which in turn could limit the children's exposure and affect the overall growth of their personality.

Even in the tiny, sylvan hamlet of Chowki in Himachal's Kangra district, social media content operator Pardeep Rana, 34, and public relations official Sumitro Sircar, 32, are hoping that the five lordships of the Supreme Court legalise same-sex marriage. More than marriage itself, they hope it will help them adopt a child. Rana's mother can't wait for the day. "She says, 'I don't know how long I will survive', so she wants us to adopt soon so that she can play with her grandchild," says Rana.

In demanding legality for same-sex marriage, the petitioners essentially want the Supreme Court to move forward on its 2018 judgment decriminalising same-sex relationships, when it held that the LGBTIQA+ community, like all other citizens, was entitled to the full range of constitutional rights, including choice of partner. "A Constitution-compliant interpretation is necessary because the current interpretation is exclusionary in a discriminatory fashion," says Singhvi. "Same-sex couples are denied rights because of sexual orientation, an ascriptive characteristic over which they have no control."

The legal hurdle is only the first of the many that lie in the path of homosexual couples' quest for marital legitimacy. There is also the opposition from sections of the political class and society.

Politically Incorrect

The Bharatiya Janata Party-led Union government is hostile to the idea of legalising same-sex marriages, unwilling even to yield ground to the apex court to adjudicate the issue. Union home minister Amit Shah as well as law minister Kiren Rijiju have, on separate occasions, questioned the apex court's jurisdiction regarding these petitions, arguing that making laws is the exclusive domain of the legislature. Party lines, in fact, often blur on the issue. Sasmit Patra, Rajya Sabha MP from the Biju Janata Dal and also a lawyer, said in court that only Parliament should have the jurisdiction to deal with a matter that has huge implications. "Forty-two laws will be affected, requiring 182 amendments and involving 19 ministries," he pointed out. Solicitor-general Tushar Mehta said that the court is dealing with a very complex subject that can have a profound social impact. It's essentially a matter for society and people to decide, he argued, and it should therefore be left to Parliament, which is the direct representative of the people, to legislate on whether or not to grant recognition to same-sex marriages. "The acceptance has to come from within society," he added. The Congress-ruled Rajasthan government, too, has submitted its opposition to same-sex marriages in court.

The Union government's fundamental opposition to same-sex marriage comes from how the Indian family is understood in India: as essentially a unit arising out of the union of a biological man and woman. It has in its petition stated that the "legislative understanding of marriage in the Indian statutory and personal law regime" refers only to marriage between a biological man and woman, and any interference "would cause complete havoc in the delicate balance of personal laws in the country and in accepted societal values".